

advised to provide the detailed financial information requested on the mandatory Judicial Council form for obtaining in forma pauperis status.” (*Alshafie, supra*, 171 Cal.App.4th at 434.)

If the trial court has already granted a plaintiff leave to proceed in forma pauperis, the trial court acts arbitrarily and capriciously if it refuses to vacate or reduce the amount of the undertaking. (*Baltayan, supra*, 90 Cal.App.4th at 1435.) And even if a fee waiver has not been obtained, indigency depends on the litigant’s individual situation. (*Alshafie, supra*, 171 Cal.App.4th at 435, 435.) Out-of-state plaintiffs who earn a low income that may be entitled to relief from requirement of posting of undertaking; not only must courts exempt poor people entirely, but they may have to reduce the security bond required for middle-income litigants as well. (*Id.* at 46.)

Here, Plaintiff has failed to submit a declaration and Judicial Council Form outlining her hardship if she were forced to post an undertaking as requested. The Court **CONTINUES** the matter to afford Plaintiff the opportunity to demonstrate her financial inability to post an undertaking in the amount of \$54,000 and to explain the significant hardship she will face in the event such an undertaking is ordered. The continued hearing is set for September 17, 2026 at 8:30 am in Dept. 3 and Plaintiff is to file further papers regarding her ability to pay an undertaking which is to be filed no later than September 8, 2026.

2.

| CASE #      | CASE NAME                   | HEARING NAME                                                 |
|-------------|-----------------------------|--------------------------------------------------------------|
| CVRI2601385 | WINTERS vs DOE<br>DEFENDANT | MOTION TO BE RELIEVED AS<br>COUNSEL FOR ALEXANDER<br>WINTERS |

**Tentative Ruling:** The motion to be relieved is granted. The order shall be effective upon filing a proof of service of the final order.

3.

| CASE #      | CASE NAME                                                 | HEARING NAME          |
|-------------|-----------------------------------------------------------|-----------------------|
| CVRI2602139 | LOPEZ LOPEZ vs<br>JAGUAR LAND ROVER<br>NORTH AMERICA, LLC | DEMURRER ON COMPLAINT |

**Tentative Ruling:**

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (CCP § 430.10(e).) A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

When considering demurrers, courts accept all well-pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (*SKF Farms v. Sup. Ct.* (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous